HUMAN RESOURCES GUIDE

# Policy and Procedure Template

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SECTION 1

# Introduction to the Template and Human Resource Policies

## Objectives of the Template

This template is provided as a tool for community foundations to develop policies on all matters related to conditions of employment. There are parts of this policy which also apply to volunteers and individuals working on contract. Those policies that do not apply to volunteers and contractors will be so noted at the beginning of each policy.

Employment-related legislation is a provincial responsibility. All parts of this document are supplementary to applicable federal and provincial legislation. In the event of conflict, such legislation will prevail. Appendix A provides links to legislation in each province and territory. There will be references throughout this document where it is necessary to adapt this policy to align with said legislation.

There will also be notations throughout this policy where local community foundation specific information needs to be inserted.

At the beginning of each policy there is a shaded text box that provides rationale as to why the policy is important, especially from a risk mitigation perspective. The box also includes guidance on adapting the policy for your foundation's use. When developing your foundation's policies, these text boxes can be removed, unless you would like to include them as part of the rationale for each of the policies.

For some community foundations, the senior staff member is the Executive Director (ED) and for others the title is Chief Executive Officer (CEO). For the purposes of this document, any reference to either of these positions will be as ED/CEO.

## Objectives of the Human Resource Policy

It is the intention of the Foundation to create a fair, safe and enjoyable working environment for employees, volunteers, and contractors. As a growing organization, changes are inevitable. All changes are and will be implemented in the best interest of the Foundation in order to provide a positive, dependable work environment.

This Human Resource Policy and Procedures Handbook will provide each employee, volunteer, and contractor with the guidelines necessary in building a healthy environment. There is no guarantee that satisfaction can be given in every case, but the Foundation will endeavor to do the very best to provide an acceptable explanation of its final decisions.

The objectives to this handbook are to:

- Provide a standard reference for the Board of Directors, employees, and contractors in understanding their rights and responsibilities,
- Encourage continuity and consistency in the administration and application of the human resource policy, and,
- Provide direction and authority in the day-to-day administration of human resources.

## Eligibility and Scope

These policies are approved and administered by the ED/CEO and apply to all employees and in identified areas, volunteers and contractors, of the Foundation.

## Implementation and Monitoring

The ED/CEO will be responsible for the implementation and monitoring of the Human Resource Policies and Procedures.

## File Management and Amendments to the Manual

Employees, volunteers and contractors are requested to assist in keeping the human resource policies up-to-date by notifying the ED/CEO whenever problems are encountered or improvements may be made in the administration of said policies and procedures.

SECTION 2

# General Policies

## Decent Work

Decent work means more than fair wages and benefits. It reflects a cultural shift that builds on the values that drive your work in your community. Decent workplaces are fair, stable and productive workplaces. Decent work means building a culture of equality and inclusion at work, and ensuring everyone's voices are valued and heard. Decent work means acknowledging the highly gendered nature of the nonprofit sector's workforce – and developing solutions that address women's particular interests and concerns.

Through adopting decent work practices, your organization will be better able to meet your mission and contribute to thriving communities. And in doing so, you help build a stronger, more resilient nonprofit sector.

The above text is used with permission of the Ontario Non-Profit Network. ONN also has an extensive Decent Work Checklist that can help to guide your foundation in incorporating this concept throughout your organization.

https://theonn.ca/wp-content/uploads/2019/10/Decent-Work-Checklist-May-2019.pdf

## Code of Ethics

A code of ethics is important for organizations to establish and ensure that everyone in the organization is clear on the mission, values and guiding principles. The code provides employees, volunteers and contractors with a framework of which rules exist, from a regulatory and law-enforcement standpoint and how to act in the grey areas of values-based ethics that aren't always clear. The policy below provides a framework from which with your foundation can base your policy. Amend to align with your foundation's practices.

### PREAMBLE:

As a matter of fundamental principle, the Foundation requires the highest ethical standards because public trust in our performance is the bedrock of our legitimacy. Donors, volunteers and grant recipients trust the Foundation to carry out its mission, to be good stewards of endowment funds, and to uphold rigorous standards of conduct.

The Foundation must earn this trust every day. It is therefore essential the people involved with the Foundation, board members, employees and volunteers demonstrate their ongoing commitment to the core values of integrity, honesty, impartiality, openness, respect, and responsibility.

Simple adherence to the law is not enough. The Foundation will often need to go beyond legal requirements and make sure that its actions are transparent, open and responsive to public concerns.

### CODE OF ETHICS:

The Board of Directors promotes the highest standards of ethical behaviour. The Code of Ethics which relates specifically to Foundation employees includes:

1. **Integrity:** Foundation members shall act with competence, honesty, integrity, respect and fairness while carrying out their obligations for the Foundation.
2. **Role:** The wellbeing of the people of our community will be the primary role of Foundation members. In addition, employees, volunteers and contractors will act in the best interests of the Foundation in fulfilling its mission.
3. **Accountability and Transparency:** In carrying out philanthropic activities employees, volunteers and contractors will act within the letter and the spirit of the law. The Foundation embraces public interest, takes full responsibility for its actions, communicates truthfully, and ensures public records are easily available while maintaining appropriate privacy and confidentiality. The Foundation will manage its resources carefully and frugally, actively avoiding excessive expense.
4. **Diversity and Inclusiveness:** The Foundation will seek diversity and inclusiveness in order to reflect our community. The Foundation will strive to ensure that a full range of perspectives contribute to the common good of our organization. In conducting its business, all members of the Foundation will listen to and treat all others who come together under the auspices of the Foundation with respect.

## Harassment-free Workplace

Harassed employees, volunteers and contractors can develop anxiety, panic attacks and avoidance behaviours that decrease their effectiveness. They can lose motivation and experience a decline in their health and decision-making ability. Harassment can also result in legal costs and can damage the Foundation's reputation.

### Policy and Procedure Statement

The Foundation is committed to providing a work environment that is free of harassment and supportive of the dignity, self-esteem and productivity of every employee. The Foundation will not tolerate any form of harassment of, or by, employees, stakeholders, volunteers, students, contractors, suppliers or other individuals associated with the Foundation while engaged in activities pertaining to the workplace. The Foundation has developed a more comprehensive policy addressing the details surrounding this issue. Please refer to the Anti-Harassment Policy further on in this document.

# Confidentiality

Confidentiality in the workplace is of primary importance to business etiquette. Not only are you showing your stakeholders a level of common courtesy by protecting their data, but you are also fulfilling your legal responsibility to prevent sensitive information from being used inappropriately or being leaked.

Foundations can replace their own confidentiality policy and procedures with the text below. If using this text, Foundations should ask the following question for each of the statements and amend accordingly if the statement does not align: “Does this statement align with our Foundation’s values and principles?”

## Policy and Procedure Statement

1. **General**

   Employees, volunteers, and contractors of the Foundation will treat information provided or gathered by the Foundation with discretion. Any information received through involvement with the Foundation will not be used for personal gain.

2. **Donors**

   Donor requests for confidentiality and anonymity will be strictly respected. Access to donor information will be restricted to only those who need it for the function of their duties. Paper records will be kept locked and computer records are protected using password protocols. Donor lists will not be shared with any other fundraising organizations.

3. **Grant Recipients**

   The Foundation grant making process requires charities and agencies to provide detailed project and organizational information. This information will often be of a sensitive nature, and will therefore be treated in confidence by employees.

4. **Contracts/Grants**

   The Foundation as a necessity will contract with professional and business corporations and details of all such transactions will be treated with respect and discretion. Information relating to personnel, litigation and property contracts and resulting transactions will be kept confidential

5. **Meetings**

   The Board and all its committees will act as a whole. Deliberations including the opinions of individual Board and committee members will be kept confidential by employees, volunteers and contractors. Third party opinions with respect to contracts or grants applications will be kept confidential.

### Procedures:

1. All employees, volunteers and contractors must sign the Foundation confidentiality agreement during orientation.
2. Two copies of the confidentiality agreement will be made. A copy will go to the person signing the agreement and the second copy will be filed and a scanned copy is saved on the server.

## Conflict of Interest

When a conflict of interest occurs, it can erode public and internal trust, damage the Foundation's reputation, potentially hurt the organization financially and, in some cases, break the law. While one may think conflict of interest applies only to people serving on the Foundation's board, it really can occur at any level within an organization, including part-time employees and contractors.

Foundations can replace their own Conflict of Interest policy and procedures with the text below. Foundations should check with legal counsel to ensure their text is enforceable in their province.

### Policy and Procedure Statement

A Foundation must strive, as far as possible, to conduct its affairs in an honest, forthright, and impartial manner. It is not enough that those making decisions believe that they are operating from the highest motives, and that any particular action is innocent. So far as possible, actions and relationships must avoid any appearance of impropriety that may raise questions in the minds of the public.

The Foundation recognizes that employees will be associated with organizations that, from time to time, may apply for funding. This policy is directed towards the sources of most potential conflict which include conflicts arising as a result of affiliation with:

- an organization or individual which has, or is negotiating, a business relationship with Foundation,
- an organization seeking funding or other support from the Foundation.

### Definitions:

Conflict of interest (as it applies to an "Individual") means an actual, apparent or potential conflict of interest in the exercise of unbiased judgment on behalf of the Foundation and its dealings with any person, who may be obligated to the Foundation or may benefit from dealings with the Foundation.

For the purpose of this definition:

"Individual" means any officer, director, employee, contractor or volunteer who is working for or on behalf of the Foundation and includes members of the Individual's immediate family including, without limitation, the individual's common law spouse. "Person" means an individual person, corporation or body corporate, partnership, organization, or any other recognizable group or association that purports to deal with the Foundation.

### Procedure:

A conflict of interest on the part of an employee, volunteer or contractor of the Foundation will be disclosed. When any such interest becomes a matter of Board or Committee action, such individuals shall declare the conflict and absent themselves from the discussion. The minutes of all actions taken related to the matter will clearly reflect that these requirements have been met.

## Reporting Violations

### Policy and Procedure Statement

It is each employee's, volunteer's and contractor's personal responsibility to bring violations or suspected violations of the Foundation's Code of Ethics to the attention of the ED/CEO. The Foundation's policy prohibits any retribution against employees, volunteers or contractors who come forward to make such reports. Whenever practical, all reports or allegations will be thoroughly investigated by the ED/CEO prior to judgments being made or action being taken in response to suspected violations.

SECTION 3

# Employment Information

*(this section only applies to employees)*

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## Hours of Work

### Policy and Procedure Statement

Foundations should refer to their provincial employment standards legislation for this section. See Appendix A. The following text can be amended to align with the standards as well as current practices of the Foundation.

The Foundation is open Monday through Friday, except when observing statutory holidays. A normal workday is considered to be a maximum of _____ hours per day; these hours are exclusive of a _____-minute lunch and _____ fifteen-minute breaks. The standard workweek is comprised of a maximum of _____ hours per week. (adjust to align with your Foundation's current practice)

If an employee is required to leave the Foundation during normal working hours, he/she is required to notify co-workers, as well as the ED/CEO

All employees at the Foundation will be paid on a weekly/biweekly/monthly basis with the opportunity of a mid-month advance.

Employees shall be required to submit a completed "Timesheet" in the attached form to the Chief Executive Officer by the 26th of each month (adjust to fit your Foundation's practices and pay periods).

Regular attendance and punctuality are an important part of an employee's responsibility. Therefore, established working hours shall be adhered to. Any lateness or absenteeism shall be reported as far in advance of starting time as possible under unusual circumstances. Foundation employees are expected to telephone the office in these circumstances.

The telephone voicemail system is an acceptable method for reporting lateness or absenteeism.

# Dress Code

Include this policy if dress code at work matters to your Foundation.

### Policy and Procedure Statement

Maintaining a professional, business-like appearance is very important to the success of the Foundation.

Regardless of the employee's interaction with clients, customers, suppliers, contractors, or volunteers, each employee projects the reputation of the organization. Part of this impression depends on each employee's choice of attire.

The Foundation has chosen to offer a casual dress environment for employees. Employees are expected to use good judgment and to show courtesy to their co-workers by dressing in a manner that is presentable and appropriate. At all times employees are asked to be cognizant that regardless of their interaction with clients, customers, suppliers, contractors, or volunteers, the Foundation is still a place of business.

Should employees be asked to attend business meetings with clients, either in the Foundation offices or otherwise, they should dress in appropriate business attire.

# Overtime/Lieu Time

This section needs to align with your provincial employment standards. The policy suggested is an approach that you can take but you may want to handle hours worked beyond the standard work week in a different way than the below policy suggests.

### Policy and Procedure Statement

Overtime is considered to be anything over 8 hours worked in a day and excess of 44 hours in a week for full-time employees.

The Foundation will grant time off for hours worked beyond what would be considered a standard work week. Any hours worked in excess of 8 hours per day or 44 hours in a week will be banked at 1.5 times of the employee's actual hours worked. The time off will be taken at a time mutually agreeable to the ED/CEO and the employee(s). If the accumulated time is not taken within six months, the employer will pay the overtime hours at the prescribed rate of 1.5 times the employee's regular wage.

The maximum time that an employee may claim is 12 hours per day of work time for out of town trips or conferences.

Employees must be properly authorized to work overtime in advance as a condition for being credited for such overtime, except in emergency situations where prior consent cannot be obtained. In such cases, the employee will advise the ED/CEO of circumstances as soon as possible.

Employees shall be required to submit a completed "Overtime Approval Form" to the ED/CEO for approval.

# Travel and Expense Claims

### Policy and Procedure Statement

Employees will be reimbursed for expenses incurred in the fulfillment of Foundation responsibilities, upon submission of appropriate receipts to the ED/CEO for approval within 30 days of the incurred expense. When employees travel out of town to attend overnight Foundation related activities, such expenses include but are not limited to mileage and/or transportation costs, meals and overnight accommodation. The Foundation will not cover the cost of alcoholic beverages. Remuneration for use of personal vehicles for business related activities shall be at the rate of $0.48 per kilometer (insert your Foundation's rate – some Foundation's use the federal government's standard mileage rate). Employees shall record an odometer log of all kilometers incurred on their personal vehicle during the course of business. Mileage claims start from the employee's normal place of business.

Any and all business activities requiring use of a personal vehicle by the employee must have the prior approval of the ED/CEO.

# Statutory Holidays

### Policy and Procedure Statement

The Foundation observes the following paid holidays (insert provincial statutory holidays):

Part-time employees not scheduled to work on statutory holidays will NOT be paid holiday pay in accordance with the Employment Standards Act. (this clause needs to align with your provincial legislation)

Part time employees receive General Holiday Pay only if it is a scheduled workday and would be paid for the average daily wage.

Holiday pay will be calculated at five percent of wages the four weeks immediately preceding the holiday. Employees will not receive General Holiday Pay if the holiday falls on a day that they are not scheduled to be working i.e. Saturday, except when July 1 lands on a Sunday then Monday is the designated holiday. This affects or could affect Christmas, Boxing Day and New Year's Day. (this clause needs to align with your provincial legislation - however it could be improved upon based on your Foundation's current practice)

# Personnel Confidentiality

### Policy and Procedure Statement

Each employee or applicant for employment has the right to have all information about him/her kept strictly confidential. No personnel file or any other employee report shall be disclosed without the written permission of the employee. (this clause needs to align with provincial privacy legislation affecting employees – see appendix A for links)

## Outside Employment

Foundations should read through the below policy statement and adapt it to fit their current practices. If a Foundation has never considered this type of policy, the following questions help with framing: Are we willing to let staff use Foundation equipment for outside activities? Are we able to limit our employees working at other organizations, and if so, are there any limitations that we could legally impose? What is our position in staff soliciting donors and volunteers for outside employment?

### Policy and Procedure Statement

The Foundation recognizes the right of its employees to privacy and to make use of personal time outside of working hours as they see fit. However, outside employment opportunities should be carefully considered to ensure the employee's ability to perform their responsibilities at the Foundation are not adversely affected. Employees may engage in outside employment that complies with the following:

A. All outside employment and associated activities must be kept separate from the employee's Foundation responsibilities.

B. Employees are prohibited from using time, tools, equipment, materials, personnel or information obtained through the Foundation for outside activities.

C. Where the possibility of a conflict of interest exists, an employee should discuss these activities with the ED/CEO prior to engaging in such activities.

D. The outside employment should not embarrass or discredit the Foundation.

E. Soliciting Foundation donors and volunteers for outside employment is strictly prohibited.

## Participation in Community Activities

Does your Foundation encourage employees to participate in community activities? If so, refer to the below policy. If not, this policy is not necessary.

### Policy and Procedure Statement

The Foundation strongly encourages individuals to participate in community activities that promote the general welfare of the community. Employees, who participate in such activities on or off Foundation time, must recognize that they are representatives of the Foundation and should act accordingly.

## Solicitation on Foundation property

Does your Foundation permit solicitation on your property? If so, refer to the below policy.

### Policy and Procedure Statement

Foundation employees must demonstrate their dedication during the performance of job responsibilities to ensure the fulfillment of the goals and objectives of the Foundation.

A. Employees must refrain from any activity directed toward private gain during working hours. Normal working hours do not include unpaid break periods.

B. Collection of gifts for fellow employees and Foundation supported solicitations, for sale of merchandise raffle tickets, club memberships or organizations is permitted provided the time does not interfere significantly with the productivity of employees and the activity has been approved by the ED/CEO.

## Personal Use of Foundation Equipment

Does your Foundation permit employees, under certain circumstances, to use Foundation equipment for personal use? If so, refer to the below policy.

### Policy and Procedure Statement

The Foundation's resources should be used for the benefit of the Foundation and not for personal financial gain. Employees will be allowed personal use of Foundation equipment only when:

A. Advance approval by ED/CEO is obtained.

B. The item is portable.

C. The item is non-consumable.

D. The cost to the Foundation is negligible.

Use of Foundation resources for community or charitable activities must be approved in advance by the ED/CEO.

## Accuracy of Record

This policy is critical as it mitigates risk and limits the liability of the Foundation.

### Policy and Procedure Statement

The Foundation's business transactions must be properly authorized and be completely and accurately recorded in the Foundation's books and records.

A. Altering or destroying data in an attempt to produce false or misleading records or reports is strictly prohibited.

B. Reports and evaluations must fairly represent all information relevant to the decision being requested or recommended.

C. Undisclosed funds or accounts may not be established for any purpose.

D. Record retention policies established by law or the Foundation must be adhered to.

E. In the event any falsification of Foundation records or transactions occurs, the employee may be subject to disciplinary action up to and including dismissal.

## Technology – Computer Use, Business Phones, Internet and Email

An effective Technology Use Policy places the responsibility for data security into the hands of the user. Ultimately, a well-defined policy sets the precedence for what your organization is responsible for versus what the users are responsible for regarding security. Use the template below as the basis for your Foundation's policy and amend accordingly.

### Policy and Procedure Statement

Technology resources of the Foundation include but are not limited to email, internet, telephone and new technologies. The Foundation provides electronic and computer equipment for the employee's use in completing their job responsibilities. The Foundation's goal for technology is to help donors and employees by providing the right information and technology at the right place and the right time. The Foundation has a commitment to protect our information assets and to respect the donors' rights to privacy and confidentiality.

No information on the internet should be distributed, viewed, copied or saved which is not related to Foundation business or not in compliance with policies or applicable legislation.

Personal long-distance direct telephone calls from any Foundation telephone are not permitted, except in the instance of a family emergency. Personal telephone charges will be charged back to the employee upon receipt of the Foundation's billing.

## Procedures

A. The ED/CEO will be responsible for creating, maintaining and deleting email accounts.

B. Email is a Foundation resource and personal use must be kept to a minimum. Employees are asked to check personal email, text messaging, and social media accounts during the employee's breaks, lunch breaks or after hours.

C. It follows that email is not private, and may be reviewed by authorized individuals, including the ED/CEO.

D. It is the responsibility of the individual users to provide good housekeeping of their email files. Note: deleting a message/file may not fully eliminate it from the system.

E. When sending messages, employees shall identify themselves clearly and accurately.

F. The computer system should not be used to communicate anything improper or illegal.

G. Permission for equipment usage for personal reasons will require the approval of the ED/CEO. If approval has been obtained for personal use, all work will be performed in the employee's lunch breaks or after hours if appropriate.

H. Computer use will exclude the installation of personal hardware or software applications on to Foundation equipment without the express written permission of the ED/CEO.

I. No email, text or voice mail message should be created, sent or saved that contains intimidating, pornographic, hostile or offensive material prohibited according to the (insert name of province) Human Rights Commission or Criminal Codes.

J. It is the responsibility of the ED/CEO to monitor personal usage of any computer. It follows that computer use is not private, and may be reviewed by authorized individuals, including the ED/CEO.

K. Employees will sign a consent form indicating their understanding of the Foundation's policy. They must understand that violation of the policy may result in disciplinary action up to and including dismissal.